



CHAPTER clxxxii.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Ashton-under-Lyne Bury Leyton Shipley and Sunderland. A.D. 1900.
[30th July 1900.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament and that the provision herein contained should be enacted with reference to one of such Orders :

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. The Urban District Council of Leyton shall not under the powers of the Leyton Order 1900 hereby confirmed purchase or acquire either compulsorily or by agreement ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied. Special provisions relating to Leyton as to houses of labouring class.

For the purposes of this section the expression "labouring class" includes mechanics artizans labourers and others working for

[Ch. clxxxii.] *Local Government Board's* [63 & 64 Vict.]
Provisional Orders Confirmation (No. 13) Act, 1900.

A.D. 1900. wages hawkers costermongers persons not working for wages but
— working at some trade or handicraft without employing others
except members of their own family and persons other than
domestic servants whose income does not exceed an average of
thirty shillings a week and the families of any of such persons who
may be residing with them.

Short title. **3.** This Act may be cited as the Local Government Board's
Provisional Orders Confirmation (No. 13) Act 1900.

S C H E D U L E.

BOROUGH OF ASHTON-UNDER-LYNE.

A.D. 1900.

Provisional Order for altering the Ashton-under-Lyne Corporation Act, 1893.

*Ashton-
under-Lyne
Order.*

To the Mayor Aldermen and Burgesses of the Borough of Ashton-under-Lyne ; —

And to all others whom it may concern.

WHEREAS the Borough of Ashton-under-Lyne (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban District Council and as such Council are the local authority within the meaning of the Public Health Act 1875 ;

And whereas the unrepealed provisions of the Ashton-under-Lyne Corporation Act 1893 (herein-after referred to as "the Local Act") are in force in the Borough and by Section 20 of the Local Act provision was made with respect to closet accommodation as defined by the Local Act : 56 & 57 Vict.
c. excv.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect :— 38 & 39 Vict.
c. 55.

Art. I.—(1.) Where any closet accommodation which existed at the passing of the Local Act is certified by the Medical Officer of Health to be insufficient or to be in such a state as to be a nuisance or injurious to health the Corporation may upon such certificate by written notice to the owner of the premises to which the closet accommodation so certified is attached require such owner within the time specified in such notice and not being less than fourteen days after the service of such notice by the conversion of such closet accommodation or otherwise to provide on or in connexion with the premises such sufficient and proper closet accommodation in the form of a slop-water closet trough-closet or water-closet as the Corporation may specify in the said notice.

(2.) The provisions of sub-section (4) of so much of sub-section (6) as refers to the first-mentioned sub-section the byelaws made in pursuance of sub-section (3) of Section 20 and the provisions of Section 21 of the Local Act shall apply to such owner and to the execution of works by such owner in compliance with the said notice.

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*Ashton-
under-Lyne
Order.*

(3.) In respect of the expenses or of a contribution to the expenses incurred by such owner in the execution of such works when the same shall have been completed to the satisfaction of the surveyor the Corporation shall pay to such owner the sum of four pounds.

(4.) Where such owner neglects or refuses to comply with any such notice as aforesaid the Corporation may at the expiration of the time specified in such notice execute such works as are therein specified.

For that purpose sub-section (2) of Section 20 of the Local Act shall apply and have effect as if the words "at their own expense" were omitted and as if there were added to the said sub-section the words following that is to say,—

"And the Corporation may recover summarily as a civil debt from the
" owner of such premises so much of the expenses incurred by the
" Corporation as may be in excess of the sum of four pounds."

Art. II. Any moneys expended by the Corporation under the provisions of this Order shall so far as they are not recoverable from the owner of any premises or defrayed by means of borrowed moneys be paid out of the improvement rate.

Art. III.—(1.) Where any person deems himself aggrieved by any requirement of the Corporation under Article I. of this Order or by any demand in respect of expenses recoverable from him under this Order such person may within fourteen days after the service of notice of the requirement or of a demand for payment of such expenses appeal to a court of summary jurisdiction and the court may make such order in the matter as to them may seem equitable and the order so made shall be binding and conclusive on all parties :

Provided nevertheless that the right of appeal consequent upon any such demand as aforesaid shall be restricted to the question of the reasonableness of the amount of such demand.

(2.) Pending the decision of the court upon any such appeal the Corporation shall not be empowered to execute any works included in the notice and any proceedings which may have been commenced for the recovery of such expenses shall be stayed.

Art. IV. This Order may be cited as the Ashton-under-Lyne Order 1900.

Given under the Seal of Office of the Local Government Board this
Seventeenth day of May One thousand nine hundred.

(l.s.)

HENRY CHAPLIN President.
S. B. PROVIS Secretary.

BOROUGH OF BURY.

A.D. 1900.

Provisional Order for altering certain Local Acts.

*Bury
Order.*

To the Mayor Aldermen and Burgesses of the Borough of Bury ; —

And to all others whom it may concern.

WHEREAS the Borough of Bury (herein-after referred to as “the Borough”) is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as “the Corporation”) are the Urban Sanitary Authority and the unrepealed provisions of an Act passed in the second year of the reign of Her present Majesty intituled “An Act for providing a market-place and for regulating the markets and fairs in the Town and Borough of Bury in the county palatine of Lancaster” the Bury Improvement Act 1846 and the Bury Improvement Act 1872 (each of which Acts is herein-after referred to as the Act of the year in which it was passed and which are herein-after collectively referred to as “the Local Acts”) and certain other Local Acts as altered by certain Provisional Orders of the Local Government Board which were duly confirmed by Parliament but which do not affect the subject-matter of this Order are in force in the Borough ;

2 Vict. c. viii.

9 & 10 Vict.
c. ccxciii.
35 & 36 Vict.
c. cxlvi.

And whereas by the Local Acts the Corporation or their predecessors were authorised to establish markets and fairs slaughter-houses and weighing machines in the Borough and to borrow moneys for those purposes and to take the tolls stallages rents and sums of money mentioned in the schedule to the Act of 1839 and in Schedule A and Schedule B to the Act of 1846 ;

And whereas the Corporation propose to provide in pursuance of Section 40 of the Act of 1872 places and buildings including cold-air storage for the purposes of their market undertaking and it is expedient that they should be empowered to borrow additional moneys for such purposes and for the purpose of the provision of slaughter-houses for the Borough :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be altered so that the following provisions shall take effect viz.,—

38 & 39 Vict.
c. 55.

Art. I. The Corporation may on the completion and opening of the market-places or market-houses which they propose to provide close and discontinue the use of their existing markets and may (a) either sell or otherwise dispose of the lands and buildings connected therewith and apply the moneys received by them in respect of such sale or other disposition towards the repayment of the sums borrowed by them for the purposes of their market undertaking or to such other purposes as may be authorised by the Local Government Board or (b) may appropriate the said lands and buildings for such purposes as may be approved and subject to such conditions and restrictions as may be required by the Local Government Board.

Sale of existing
markets and
appropriation
of sale
proceeds.

Art. II.—(1.) So much of the Local Acts as empowers the Corporation to provide market-places market-houses and slaughter-houses shall extend and apply to the provision of refrigerators or cold-air stores for the storage and

Provision of
refrigerators
in connexion
with markets

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Provisional Orders Confirmation (No. 13) Act, 1900.

A.D. 1900. preservation of marketable articles of ice-making apparatus and of such other apparatus as may be necessary for the due and proper working and regulation of the said refrigerators cold-air stores and ice-making apparatus and the provision of any such refrigerator or cold-air store shall be deemed to be a purpose to which Sections 40 and 42 of the Act of 1872 are applicable.

Bury Order.

(2.) The Corporation may demand and take in respect of the use of any such refrigerator or cold-air store such charges as the Corporation may determine.

Alteration of
tolls for
markets and
slaughter-
houses &c.

Art. III. The Local Acts shall be altered so as to empower the Corporation to demand take and recover such tolls stallages and rents in respect of their markets and fairs and the commodities sold therein and of their slaughter-houses and for the use of their weighing-houses machines and apparatus as may be sanctioned by the Local Government Board and from and after the date upon which such tolls stallages and rents as sanctioned by the Local Government Board come into operation the tolls stallages rents and sums mentioned in Schedule A to the Act of 1839 and in Schedules A and B to the Act of 1846 shall cease to be demanded or taken or recoverable.

Additional
borrowing
powers for
slaughter-house
and market
undertakings.

Art. IV. The Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order borrow for the purposes of their market undertaking and the provision of slaughter-houses for the Borough and on the security of the revenues arising from those undertakings and of the general rate of the Borough or upon any of such securities in addition to any sums they may have been authorised by the Local Acts to borrow for such purposes the following sums namely—

- (a) for the purposes of their market undertaking any sum or sums not exceeding in the whole the sum of fifteen thousand pounds ; and
- (b) for the purposes of the provision of slaughter-houses and the provision of refrigerators or cold-air stores and the provision of ice-making apparatus and other such apparatus in connexion therewith and in connexion with their market undertaking any sum or sums not exceeding in the whole the sum of twenty thousand pounds.

Local Loans
Act and certain
provisions of
Public Health
Act made
applicable.

Art. V. For the purpose of raising money under this Order the provisions of the Local Loans Act 1875 shall be available to the Corporation and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed or re-borrowed on mortgage under this Order.

Period for
repayment of
borrowed
money.

Art. VI. The moneys borrowed under this Order shall be repaid within such period not exceeding thirty years from the date of borrowing as the Corporation with the sanction of the Local Government Board shall determine which period is herein-after referred to as “the prescribed period” and shall with reference to the moneys to be repaid be the prescribed period for the purpose of this Order and of the Local Loans Act 1875.

Mode of
repayment.

Art. VII.—(1.) The Corporation shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of these methods and partly by another or the others of them.

(2.) Subject to the provisions of Article VIII. of this Order if the Corporation determine to repay by means of a sinking fund any moneys borrowed under this Order such sinking fund shall be formed and maintained either—

A.D. 1900.

*Bury
Order.*

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund ; or

Formation
maintenance
and application
of sinking
fund.

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is herein-after called an accumulating sinking fund.

(3.) Every sum paid to any sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 other than securities of the Corporation the Corporation being at liberty from time to time to vary and transpose such investments.

(4.) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(5.) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part of a sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6.)—(a.) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b.) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards such equal annual payments.

(7.) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

[Ch. clxxxii.] *Local Government Board's* [63 & 64 VICT.]
Provisional Orders Confirmation (No. 13) Act, 1900.

A.D. 1900.

*Bury
Order.*

Increase
reduction or
discontinuance
of payments to
sinking fund.

Art. VIII.—(1.) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(2.) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3.) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board shall approve.

(4.) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of the Board discontinue the equal annual payments to such sinking fund until the Board otherwise direct.

Surplus of
sinking fund.

(5.) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine.

Power to
re-borrow.

Art. IX. The Corporation shall except as herein-after provided have power to re-borrow for the purpose of paying off moneys borrowed or re-borrowed under this Order which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Corporation within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow :

Provided that the Corporation shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose :

Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period.

Application of
borrowed
moneys.

Art. X. All moneys from time to time borrowed or re-borrowed under this Order shall be applied by the Corporation only for the purposes for which the same are respectively authorised to be borrowed or re-borrowed excepting

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxii.]
Provisional Orders Confirmation (No. 13) Act, 1900.

that moneys which may have been borrowed or re-borrowed in excess of the amount required shall be applied in such manner as the Corporation with the approval of the Local Government Board determine. A.D. 1900.

Bury
Order.

Art. XI.—(1.) Subject to the provisions of this Article any mortgagee of the Corporation in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. Receiver.

(2.) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him :

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to such applicants collectively shall not be less than five hundred pounds in the whole.

Art. XII.—(1.) The treasurer of the Borough shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the said treasurer showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the said treasurer shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court. Return as to
provision for
repayment of
debt.

(2.) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Order or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Board may by Order direct that the sum in such Order mentioned not exceeding double the amount in respect of which default has been made shall be paid or

[Ch. clxxxii.] *Local Government Board's* [63 & 64 Vict.]
Provisional Orders Confirmation (No. 13) Act, 1900.

A.D. 1900. applied as in such Order mentioned and any such Order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

Bury Order.
 Inquiries and expenses.

Art. XIII. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of the Local Acts or this Order the costs incurred by the Board in relation to such inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in such inquiry) shall be paid by the Corporation and the Board may certify the amount of the costs so incurred and any sum so certified and directed by that Board to be paid by the Corporation shall be a debt due to the Crown from the Corporation.

Short title.

Art. XIV. This Order may be cited as the Bury Order 1900.

Given under the Seal of Office of the Local Government Board this
 Seventeenth day of May One thousand nine hundred.

(I.S.)

HENRY CHAPLIN President.
 S. B. PROVIS Secretary.

Leyton Order.

URBAN DISTRICT OF LEYTON.

Provisional Order to enable the Urban District Council of Leyton to put in force the Compulsory Clauses of the Lands Clauses Acts.

To the Urban District Council of Leyton ; —
 And to all others whom it may concern.

WHEREAS the Urban District Council of Leyton (herein-after referred to as "the Urban District Council") require to purchase and take the lands described in the schedule hereto for the purpose of widening enlarging or otherwise improving the streets called High Road (Leytonstone) Harrow Road Church Lane and Vernon Road and the road on the north-west side of Harrow Green and Holloway Road in their district :

38 & 39 Vict.
 c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz,—

Art. I. The Urban District Council shall be empowered to put in force with reference to the lands described in the schedule hereto subject to the continuance of existing public rights of highway (if any) and for the purpose aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them :

Provided that the prescribed period for the compulsory purchase of the lands referred to in Part I. of the schedule hereto shall for the purposes of Section 123 of the Lands Clauses Consolidation Act 1845 be one year from the date of the Act of Parliament confirming this Order.

Art. II. This Order may be cited as the Leyton Order 1900.

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxii.]
Provisional Orders Confirmation (No. 13) Act, 1900.

The SCHEDULE above referred to.

A.D. 1900.

Parish of Low LEYTON in the County of ESSEX.

*Leyton
Order.*

Nos. and Colours on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
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PART I.

HIGH ROAD LEYTONSTONE IMPROVEMENT.

1 (Blue)	House and beershop known as the "Two Brewers" yard and shed.	Watney Reid & Co. Limited.	Alexander Wallace	Alexander Wallace.
HARROW ROAD IMPROVEMENT.				
1 (Yellow)	Cottage and garden -	The Metropolitan House and Investment Agency Company Limited.	- - -	William Fowler.
2 (Blue)	ditto - -	ditto - -	- - -	Charles Pavett.
3 (Green)	ditto - -	ditto - -	- - -	Thomas Springate.
4 (Yellow)	ditto - -	ditto - -	- - -	William May.
5 (Blue)	ditto - -	ditto - -	- - -	John Brewer.
6 (Green)	ditto - -	ditto - -	- - -	William Sallnow.
7 (Yellow)	ditto - -	ditto - -	- - -	William Butcher.
8 (Blue)	ditto - -	ditto - -	- - -	Arthur Perry.
9 (Green)	Land stable and shed	ditto - -	- - -	William Lover Fowler.

PART II.

CHURCH LANE AND VERNON ROAD IMPROVEMENT.

1 (Green)	Meadow land -	The Trustees of Harrington's Charity viz. Reverend Hugh McNeile Mansfield Thomas Moore Baxter John Baxter Shilecock William Robert Wherry Richard Brothwell.	Alfred Ewin -	Alfred Ewin.
2 (Blue)	ditto - -	ditto - -	ditto - -	ditto.
3 (Yellow)	ditto - -	ditto - -	ditto - -	ditto.

HARROW ROAD AND THE ROAD ON THE NORTH-WEST SIDE OF HARROW GREEN IMPROVEMENT.

1 (Red)	Cottage shop and garden.	The Trustees of William Dunham deceased viz Arthur Willis Georgiana Tibbs Georgiana Elizabeth Dunham.	- - -	Alice Cook.
2 (Violet)	Cottage and garden -	ditto - -	- - -	Richard Gair.

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Local Government Board's

[63 & 64 VICT.]

Provisional Orders Confirmation (No. 13) Act, 1900.

A.D. 1900.

Leyton
Order.

Nos. and Colours on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
3 (Brown)	Cottage and garden -	The Trustees of William Dunham deceased viz Arthur Willis Georgiana Tibbs Georgiana Elizabeth Dunham.	- - -	William Robert Savage.
4 (Red)	ditto - -	ditto - -	- - -	Louis Allen.
5 (Violet)	Part of roadway -	ditto - -	- - -	Dunham and White.
6 (Brown)	Vacant land - -	ditto.	---	---
HOLLOWAY ROAD IMPROVEMENT.				
1 (Yellow)	House and garden -	F. H. L. R. Moll -	- - -	William Finch.
2 (Green)	Cottage and garden -	ditto - -	- - -	Elizabeth Wiltshire Elizabeth Lowing.
3 (Blue)	ditto - -	John Axson Pearce -	- - -	John Axson Pearce.

Given under the Seal of Office of the Local Government Board this
Sixteenth day of May One thousand nine hundred.

(L.S.)

HENRY CHAPLIN President.
S. B. PROVIS Secretary.

Shipley
Order.

URBAN DISTRICT OF SHIPLEY.

Provisional Order for the alteration of the Shipley Local
Government Act 1874.

To the Urban District Council of Shipley ; —
And to all others whom it may concern.

WHEREAS the Urban District Council of Shipley (herein-after referred to as “the Council”) are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Shipley (herein-after referred to as “the district”) ;

37 & 38 Vict.
c. cvii.

And whereas the unrepealed provisions of the Shipley Local Government Act 1874 (herein-after referred to as “the Local Act”) as altered by certain Provisional Orders duly confirmed by Parliament but which do not affect the subject-matter of this Order are in force in the district ;

And whereas by Section 40 of the Local Act the Shipley Local Board the predecessors of the Council were empowered with the consent of the Local Government Board to borrow in addition to such moneys as were therein referred

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxii.]
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to as having been previously borrowed or authorised to be borrowed all such sums as the said Local Board might think requisite for all or any of the purposes of the Local Act not exceeding in the whole—

A.D. 1900.
Shipley
Order.

With respect to the water undertaking ten thousand pounds ;

With respect to street improvements fifty thousand pounds ; and

With respect to other purposes forty thousand pounds ;

And whereas the Council or their predecessors have borrowed under the Local Act the said sums of ten thousand pounds and fifty thousand pounds and the sum of four thousand five hundred pounds in respect of the said sum of forty thousand pounds and the Council have power with the sanction of the Local Government Board to borrow the further sum of thirty-five thousand five hundred pounds being the balance of the said sum of forty thousand pounds for purposes of the Local Act and by virtue of Sections 4 and 5 of the Local Act such purposes include certain purposes of the Public Health Act 1875 ;

And whereas the Council or their predecessors have also borrowed under the Public Health Acts for the purposes of the water undertaking and of street improvements certain sums exceeding in amount the said balance of thirty-five thousand five hundred pounds :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section. 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so as to provide as follows viz.,—

38 & 39 Vict.
c. 55.

Art. I.—(1.) Section 40 of the Local Act shall have and shall be deemed to have had effect as if to the extent of the sum of thirty-five thousand five hundred pounds the borrowing power thereby conferred for purposes other than the water undertaking and street improvements had in terms been conferred and made applicable for the purposes of the water undertaking and street improvements and as so conferred and made applicable had been exercised instead of the borrowing powers conferred by the Public Health Acts and exercised to the extent aforesaid for the purposes of the water undertaking and street improvements and accordingly the sums borrowed by the Council or their predecessors under the Public Health Acts for the said purposes shall to the extent aforesaid be deemed to have been borrowed by the Council under Section 40 of the Local Act and not under the Public Health Acts and the Council shall not have power to borrow further sums under the said section.

Alteration of
borrowing
powers unde
Local Act.

(2.) Provided that nothing herein contained shall prejudice or affect any mortgage or other security which may have been given in respect of any sums borrowed by the Council or their predecessors under the Public Health Acts or the rights and powers of the persons entitled under such mortgage or other security to enforce the same as if this Order had not been made.

Art. II. This Order may be cited as the Shipley Order 1900.

Short title.

Given under the Seal of Office of the Local Government Board this
Seventeenth day of May One thousand nine hundred.

(L.S.)

HENRY CHAPLIN President.
S. B. PROVIS Secretary.

A.D. 1900.

*Sunderland
Order.*

BOROUGH OF SUNDERLAND.

*Provisional Order for altering the Borough of Sunderland
Act 1885.*

To the Mayor Aldermen and Burgesses of the Borough of Sunderland ;—
And to all others whom it may concern.

48 & 49 Vict.
c. clxxxiii.

WHEREAS the Borough of Sunderland (herein-after referred to as "the Borough") is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority and the unrepealed provisions of the Borough of Sunderland Act 1885 (herein-after referred to as "the Local Act") are in force in the Borough ;

And whereas by Section 32 of the Local Act provision was made for the purpose of enabling the Corporation more effectually to enforce the provision of sufficient waterclosets earth-closets or privies and ashpits :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect :—

Definitions.

Art. I. In this Order unless the subject or context otherwise requires—

"Closet accommodation" means any receptacle for human excreta and the fittings and apparatus connected therewith.

"Water Closet" means closet accommodation on the water carriage system flushed by means of clean water supply from any source reasonably available and constructed in accordance with byelaws made by the Corporation in pursuance of this Order.

"New building" means any building which would be a new building within the meaning of Section 159 of the Public Health Act 1875 or within Section 38 of the Local Act.

"Medical officer of health" "house" and "premises" have the same meanings respectively as in the Public Health Act 1875.

"Daily penalty" means penalty for each day on which any offence is continued by a person after conviction.

Power to
require
provision of
water closets
for new build-
ings.

Art. II.—(1.) On the erection of any new building the Corporation shall when a sewer and water supply sufficient for the purpose are reasonably available be empowered by written notice to the person by whom plans relating to the new building are deposited to require that such new building shall be provided with such number of proper and sufficient Water Closets and of separate movable receptacles for ashes and house refuse as the circumstances of the case may require.

(2.) On the erection of any new building the Corporation shall when a sewer and water supply sufficient for a Water Closet are not reasonably available be empowered by written notice to the person by whom plans relating to the new building are deposited to require one or more proper and sufficient earth-closets or privies and ashpits to be provided at or in connexion with such building.

(3.) Any person offending against any requirement of the Corporation under subdivision (1) or (2) of this Article shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings which shall be recoverable summarily.

A.D 1900.

*Sunderland
Order.*

Art. III.—(1.) If on the report of the medical officer of health or the borough surveyor or the inspector of nuisances the Corporation are satisfied that any building has not sufficient closet accommodation provided thereat or in connexion therewith the Corporation may when a sewer and water supply sufficient for the purpose are reasonably available by written notice to the owner or owners of such building require that such building shall be provided with such number of proper and sufficient Water Closets as the circumstances of the case may require.

Power to
require
provision of
water closets
where closet
accommodation
is insufficient.

(2.) If the owner or owners of any such building fail in any respect to comply with a notice of the Corporation under subdivision (1) of this Article the Corporation may at the expiration of a time to be specified in the notice (not being less than fourteen days after the service of the notice) do the work specified in such notice and may recover summarily as a civil debt from the owner or owners the expenses incurred by the Corporation in so doing.

Art. IV.—(1.) When a sewer and water supply sufficient for the purpose are reasonably available the Corporation may from time to time by written notice to the owner or owners of any building require any existing closet accommodation (other than a Water Closet) provided at or in connexion with such building to be altered so as to be converted into a Water Closet which shall comply with the byelaws for the time being in force and shall communicate with a sewer and they may also require a separate moveable or other receptacle for ashes and house refuse to be provided at or in connexion with such building.

Power to
require conver-
sion of closet
accommoda-
tion.

(2.) If the owner or owners of any such building fail in any respect to comply with a notice from the Corporation under subdivision (1) of this Article the Corporation may at the expiration of a time to be specified in the notice (not being less than fourteen days after the service of the notice) do the work specified in such notice and may recover summarily as a civil debt from the owner or owners the expenses incurred by the Corporation in so doing :

Provided that if in any case such alteration shall be required in respect of any existing closet accommodation which prior to the service of the notice under subdivision (1) of this Article shall not have been certified by the medical officer of health to be insufficient for the necessities of the inhabitants of the building or to be in such state as to create a nuisance or to be injurious to health then one-half of the said expenses shall be borne by the Corporation and the remainder of the said expenses shall be borne by the owner and shall be recoverable from him summarily as a civil debt.

(3.) The Corporation may contribute towards the expenses incurred in making any alteration of any closet accommodation in pursuance of this Article in any case in which they may not be required to bear any part of such expense.

(4.) The notice under the provisions of subdivision (1) of this Article shall state the effect of the provisions of this Article.

[Ch. clxxxii.] *Local Government Board's* [63 & 64 Vict.]
Provisional Orders Confirmation (No. 13) Act, 1900.

A.D. 1900.

*Sunderland
Order.*

Payment for
works of
common
benefit.

Art. V. Where under the provisions of this Order the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under this Order are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the borough surveyor or in case of dispute by a court of summary jurisdiction.

Expenses.

Art. VI. Any moneys expended by the Corporation under the provisions of this Order shall so far as they are not recoverable from the owner or owners or defrayed by means of borrowed moneys be paid out of the district fund and general district rate.

Private
improvement
expenses.

Art. VII. The Corporation may declare any expenses incurred by them under the provisions of this Order which are recoverable summarily as a civil debt from the owner or owners to be private improvement expenses and thenceforth those expenses may be recovered summarily as a civil debt and shall be charged upon the premises in respect of which they were incurred in accordance with the provisions of Section 257 of the Public Health Act 1875.

Entry on
premises.

Art. VIII. Any person duly authorised in writing by the Corporation shall on production of such authority be admitted into any premises for the purposes of this Order and the provisions of Sections 102 and 103 of the Public Health Act 1875 shall (*mutatis mutandis*) apply to such admission.

Appeals.

Art. IX.—(1.) Where any person deems himself aggrieved by any requirements of the Corporation under subdivision (1) or (2) of Article II. subdivision (1) of Article III. or subdivision (1) of Article IV. of this Order or as to the reasonableness of any expenses wholly or partially recoverable from him under this Order such person may within fourteen days after the service of notice of the requirement or of a demand for payment of the expenses appeal to a court of summary jurisdiction and the court may make such order in the matter as to them may seem equitable and the order so made shall be binding and conclusive on all parties :

Provided nevertheless that the right of appeal subsequent to the service of a demand for payment shall be restricted to the ground of the reasonableness of the amount of the expenses and the appellant shall be precluded from raising at that stage any other question.

(2.) Pending the decision of the court upon such appeal the Corporation shall not be empowered to execute any works included in the notice and any proceedings which may have been commenced for the recovery of such expenses shall be stayed.

Byelaws as to
water closets.

Art. X.—(1.) The Corporation may make byelaws with respect to Water Closets and may by means of such byelaws prescribe the description or nature size materials position and level thereof and of the apparatus and the manner of flushing the same.

(2.) The provisions contained in the Public Health Act 1875 with respect to byelaws and the penalties which may be imposed thereby and the recovery and application of penalties shall apply to all byelaws made altered or repealed by the Corporation under the provisions of subdivision (1) of this Article and to the penalties imposed thereby.

[63 & 64 VICT.] *Local Government Board's* [Ch. clxxxii.]
Provisional Orders Confirmation (No. 13) Act, 1900.

Art. XI. The Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order borrow on the security of the district fund and general district rate of the Borough sums not exceeding in the whole the sum of ninety thousand pounds for the purposes of defraying any expenditure of the Corporation in pursuance of subdivisions (2) and (3) of Article IV. of this Order.

A.D. 1900.

Sunderland.
Order.

Additional
 borrowing
 powers.

Art. XII. For the purpose of raising money under this Order the provisions of the Local Loans Act 1875 shall be available to the Corporation and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed or re-borrowed on mortgage under this Order.

Local Loans
 Act and
 certain pro-
 visions of
 Public Health
 Act made
 applicable.

Art. XIII. The moneys borrowed under this Order shall be repaid within such period not exceeding twenty years from the date of borrowing as the Corporation with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is herein-after referred to as "the prescribed period" and shall with reference to the moneys to be repaid be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

Period for re-
 payment of
 borrowed
 moneys.

Art. XIV.—(1.) The Corporation shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

Mode of
 repayment.

(2.) Subject to the provisions of Article XV. of this Order if the Corporation determine to repay by means of a sinking fund any moneys borrowed under this Order such sinking fund shall be formed and maintained either—

Formation
 maintenance
 and application
 of sinking
 fund.

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund ; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is herein-after called an accumulating sinking fund.

(3.) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities as defined by Section 81 of the Local Act other than securities of the Corporation the Corporation being at liberty from time to time to vary and transpose such investments.

(4.) In the case of a non-accumulating sinking fund the interest on the investment of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(5.) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during

[Ch. clxxxii.] *Local Government Board's* [63 & 64 VICT.]
Provisional Orders Confirmation (No. 13) Act, 1900.

A.D. 1900. the residue of the prescribed period a sum equal to the interest which would
Sunderland have been produced by the sinking fund or the part of the sinking fund so
Order. applied if invested at the rate per centum per annum on which the annual
 payments to the sinking fund are based.

(6.)—(a.) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b.) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards such equal annual payments.

(7.) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

Increase
 reduction or
 discontinuance
 of payments
 to sinking fund.

Art. XV.—(1.) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(2.) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3.) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as that Board approve.

(4.) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of the Board discontinue the equal annual payments to such sinking fund until the Board otherwise direct.

Surplus of
 sinking fund.

(5.) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine.

Art. XVI. The Corporation shall except as herein-after provided have power to re-borrow for the purpose of paying off any moneys borrowed or re-borrowed under this Order which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Corporation within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow :

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Order.

Power to
re-borrow.

Provided that the Corporation shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose :

Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period.

Art. XVII. All moneys from time to time borrowed or re-borrowed under this Order shall be applied by the Corporation only for the purposes for which the same are respectively authorised to be borrowed or re-borrowed excepting that moneys which may have been borrowed or re-borrowed in excess of the amount required shall be applied in such manner as the Corporation with the approval of the Local Government Board determine.

Application
of borrowed
moneys.

Art. XVIII.—(1.) Subject to the provisions of this Article any mortgagee of the Corporation in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

Receiver.

(2.) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him :

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to such applicants collectively shall be not less than five hundred pounds in the whole.

Art. XIX.—(1.) The town clerk of the Borough shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of such town clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied

Return as to
provision for
repayment
of debt.

[Ch. clxxxii.] *Local Government Board's* [63 & 64 VICT.]
Provisional Orders Confirmation (No. 13) Act, 1900.

A.D. 1900. during the same period and the total amount (if any) remaining invested at the
Sunderland end of the year and in the event of his failing to make such return the town
Order. clerk shall for each offence be liable to a penalty not exceeding twenty pounds
to be recovered by action on behalf of the Crown in the High Court and
notwithstanding the recovery of such penalty the making of the return shall be
enforceable by writ of mandamus to be obtained by the Board out of the High Court.

(2.) If it appears to the Local Government Board by that return or otherwise
that the Corporation have failed to pay any instalment or annual payment
required to be paid or to appropriate any sum required to be appropriated or to
set apart any sum required for any sinking fund (whether such instalment or
annual payment or sum is required by this Order or by the Board in virtue
thereof to be paid appropriated or set apart) or have applied any portion of any
sinking fund to any purposes other than those authorised the Board may by
Order direct that the sum in such Order mentioned not exceeding double the
amount in respect of which default had been made shall be paid or applied
as in such Order mentioned and any such Order shall be enforceable by writ
of mandamus to be obtained by the Board out of the High Court.

*Inquiries and
expenses.*

Art. XX. Where the Local Government Board cause any local inquiry to
be held with reference to any of the purposes of the Local Act or this Order
the costs incurred by the Board in relation to such inquiry (including such
reasonable sum not exceeding three guineas a day as the Board may determine
for the services of any inspector or officer of the Board engaged in such
inquiry) shall be paid by the Corporation and the Board may certify the
amount of the costs so incurred and any sum so certified and directed by the
Board to be paid by the Corporation shall be a debt due to the Crown from
the Corporation.

Art. XXI. Without prejudice to any existing right of Her Majesty
there shall be exempted from the provisions of Articles II. to V. of this
Order every building structure or work vested in or in the occupation of
Her Majesty Her heirs and successors either beneficially or as part of the
hereditary revenues of the Crown or in trust for the public service or for public
services also any building structure or work vested in or in the occupation of
any department of Her Majesty's Government for public purposes or for the
public service.

Short title.

Art. XXII. This Order may be cited as the *Sunderland Order 1900.*

Given under the Seal of Office of the Local Government Board this
Seventeenth day of May One thousand nine hundred.

(L.S.)

HENRY CHAPLIN President.
S. B. PROVIS Secretary.

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